

26STCP01240 26STCP01240

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCP01240

ELAINE

LISA HARTMAN vs INDEPENDENT FINANCIAL GROUP, LLC

July

30, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PETITIONER ELAINE LISA HARTMAN'S MOTION TO GRANT PETITION TO CONFIRM
ARBITRATION AWARD.

RULING:

The Court grants the Petition to Confirm Arbitration Award, and will enter a proposed Judgment in conformity with the Arbitration Award, which Petitioner shall serve and lodge within 10 days.

Petitioner to give notice.

I.

BACKGROUND

On March 26, 2026,

ELAINE

LISA HARTMAN (Petitioner) filed a Petition against INDEPENDENT FINANCIAL GROUP, LLC (Respondent), to confirm an Arbitration Award made by the Financial Industry Regulatory Authority (FINRA).

II.

LEGAL STANDARD

Unless a petition or response seeking to correct or vacate an arbitration award was filed properly based upon valid grounds, or the proceeding is dismissed, courts are required to enter judgment in conformity with the award. (Valsan Partners Ltd. Partnership v. Calcor Space Facility (1994) 25 Cal.App.4th 809, 818.) “[T]he court shall confirm the award as made ..., unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Law Offices of David S. Karton v. Segreto (2009) 176 Cal.App.4th 1, 8.)

III.

ANALYSIS

Petitioner seeks to confirm the Arbitration Award providing for the expungement of certain references of a customer complaint and finding no violations by Petitioner or the related Broker Dealer firm.

“Courts interpret the FINRA arbitration rules the same way they interpret contracts, giving effect to

the parties' intent as expressed by the plain and ordinary meaning of the language they used.” (Ronay Family Limited Partnership v. Tweed (2013) 216 Cal.App.4th 830, 841-842.)

“Rule 12200 of FINRA's Code of Arbitration Procedure for Customer Disputes ... requires arbitration of disputes 'between a customer and a member or associated person,' if the 'dispute arises in connection with the business activities of the member or the associated person' and arbitration is required by a written agreement or requested by the customer.” (Id. at p. 843.)

FINRA Rule 2080(a) “recognizes the right of members and associated persons to seek expungement of information from the CRD system by obtaining an order from a court of competent jurisdiction directing such expungement”.... “and provides no substantive criteria for delivering the remedy of expungement, ...” (Lickiss v. Fin. Ind. Reg. Auth. (2012) 208 Cal.App.4th 1125, 1135.)

“The mandate to arbitrate disputes arising out of 'business activities of ... an associated person,' reasonably read, must require arbitration of disputes only if they arise out of the business activities of an individual as an associated person of a FINRA member. With this interpretation, FINRA and the registered representatives under its jurisdiction are assured that arbitration will pertain to matters with some nexus to the activity actually regulated by FINRA.” (Valentine Capital Asset Management, Inc. v. Agahi (2009) 174 Cal.App.4th 606, 616.)

A Court noted that, “nothing in the FINRA Code of Arbitration Rules required the arbitrators to decide issues in accordance with California law.” (Bak v. MCL Financial Group, Inc. (2009) 170 Cal.App.4th 1118, 1127.)

As is typical, there is no Opposition where the Award is based upon the parties' already agreed settlement. Such FINRA awards are commonly encountered in this Court.

IV.

CONCLUSION

The Court grants the unopposed
Petition, for reasons stated.